NATIONAL COMPANY LAW TRIBUNAL
GUWAHATI BENCH: GUWAHATI

CP (CAA)/05/GB/2019

Under Section 230/232 CA of the Companies Act, 2013 read with (compromise, Arrangement and Amalgamations) Rules, 2016

In the matter of:

1) Alco Suppliers Pvt. Ltd. : Transferee Company/applicant

2) Cogzenith Solutions Pvt. Ltd. : Transferor Company/applicant

Order delivered on 26th September, 2019

Coram:

Hon'ble Mr. Hari Venkata Subba Rao, Member (J)

Hon'ble Mr. Ashutosh Chandra, Member (T)

For the Applicants : Mr. Raj Kumar Agarwala, Advocate
Mr. Ms. Dipamoni Kalita, Advocate

For Regional Director : Moh. Shakeel, Dy. Director

For Income Tax Department : Mr. Sanjay Sharma, Advocate

ORDER

1. Advocate, Mr. Raj Kumar Agarwalla appearing for the applicant, Advocate, Mr. Sanjay Sharma, appearing for the Income Tax Department and Moh. Shakeel, Dy. Director appearing on behalf of the RD, NER, Shillong are present. Advocate appearing for the Income Tax Department reported that he has no instruction on behalf of the Income Tax Department to the Scheme. RD and OL have already filed reports. The advocate appearing for the applicant requested time for filing rejoinder to the reports filed by the RD and OL.

2. Call on 04th November, 2019.

sd/-
Member (Technical)

sd/-
Member (Judicial)

Dated, Guwahati the 26th day of September, 2019.

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